IN THE SUPREME COURT
IN THE STATE OF NORTH DAKOTA

SUPREME COURT NO. 20050004
OLIVER COUNTY NO. 04-K-1025

State of North Dakota

Appellee,

v.

Clifford Smith

Appellant.

Appeal from the District Court, South Central Judicial District, Oliver County, North Dakota

The Honorable Donald L. Jorgensen

BRIEF OF APPELLEE

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I. CONCURRENCE WITH STATEMENT OF THE ISSUE, STATEMENT OF THE CASE, STATEMENT OF FACTS, AND STANDARD OF REVIEW

The Appellee, State of North Dakota ("the State"), is satisfied with the Statement of the Issue, Statement of the Case, and Statement of Facts as submitted by Appellant, Clifford Smith ("Smith").

The issue here is entirely a question of law.

II. ARGUMENT

A. Standard of Review

The State agrees that the interpretation of a statute is a question of law, fully reviewable on appeal. *Phipps v. North Dakota Dept. of Transp.*, 2002 ND 112, ¶ 7, 646 N.W.2d 704, 707. However, the Court in *Phipps* proceeds to enumerate the specific rules of review (referencing *Keepseagle v. Backes*, 454 N.W.2d 312, 315 (N.D. 1990)):

> Our primary objective in the interpretation of a statute is to ascertain the intent of the legislature. We look first to the language of the statute. If the language of a statute is clear and unambiguous, the letter of the statute cannot be disregarded under the pretext of pursuing its spirit. If a statute's language is ambiguous or of doubtful meaning, we may consider extrinsic aides, including legislative history, along with the language of the statute, to ascertain legislative intent.

Id. (Emphasis added.)

The statutes being reviewed here are not ambiguous and the facts are undisputed. Smith plead guilty to the offense of Operating a Vehicle while Under the Influence of Intoxicating Liquor and has conceded that the violation caused serious bodily injury to another person, thus triggering the penalty provision of N.D.C.C. § 39-08-01.2. This is Smith's first DUI conviction and the parties agree it is a class B misdemeanor offense.

B. Rules of Interpretation

Regarding rules of interpretation, N.D.C.C. § 1-02-07 provides as follows:

> Whenever a general provision in a statute is in conflict with a special provision in the same or in another statute, the two must be construed, if possible, so that effect may be given to both provisions, but if the conflict between the two provisions is irreconcilable the special provision must prevail and must be construed as an exception to the general provision, unless the general provision is enacted later and it is the manifest legislative intent that such general provision shall prevail.

In the circumstances of this case, there is no question that the special punishment provision contained in N.D.C.C. § 39-08-01.2 applies directly to the class B misdemeanor committed by Smith under N.D.C.C. § 39-08-01; indeed, both are subdivisions of the very same section of the Code.

In construing penal statutes, it is well settled that any ambiguity should be resolved in favor of the defendant. *State v. Sheldon*, 312 N.W.2d 367, 369 (N.D. 1981). This rule of leniency, however, does not apply where the legislative intent is clear. *State v. Rambousek*, 479 N.W.2d 832, 835 (N.D. 1992). Ordinarily, legislative intent is presumed clear from the face of the statute. *Milbank Mut. Ins. Co. v. Dairyland Ins. Co.*, 373 N.W.2d 888, 891 (N.D. 1985).

Smith relies on *State v. Wika*, 1998 ND 33, 574 N.W.2d 831, in arguing that trial courts generally have significant discretion in criminal sentencing. However, that reliance here is misplaced. The Court in *Wika* noted that a sentence that does not conform with the letter of the authorizing criminal statute is erroneous. If the trial court has erred by imposing a sentence less than the statutory minimum, it is not only lawful to revoke an initial sentence and substitute a greater sentence that should have been imposed, it is the

court's obligation to do so. *Id.*, (quoting favorably from *United States v. Bishop*, 487 F.2d 631, 633 (1st Cir. 1973)).

There is no ambiguity in this case. On that basis alone, the decision of the District Court should be affirmed and this argument could be concluded. However, if for some reason that were insufficient, the special provision regarding punishment clearly prevails over the general criminal section, 12.1-32-01, and there is clearly no remaining substantive arguments for reversal.

C. The North Dakota Legislature is authorized to declare imposition of special punishment for violations of specific offenses.

Even if, arguendo, there were some ambiguity in the statutes, as a valid exercise of its police power the North Dakota Legislature may define what acts will constitute criminal offenses and set maximum and minimum sentencing guidelines for violating those offenses. A trial court has both the power and duty to impose a particular sentence within the limits of the maximum and minimum penalty prescribed by statute for the particular offense, *State v. Brandon*, 413 N.W.2d 340 (N.D. 1987).

D. Subsequent amendments to N.D.C.C. § 12.1-32-01 do not affect the special punishment provisions of N.D.C.C. § 39-08-01.2.

Smith's "latest enactment" argument is based on the premise that "if any irreconcilable conflict exists, the latest enactment will control or will be regarded as an exception to or as a qualification of the other". *City of Bismarck v. Fettig*, 1999 ND 193 ¶ 19, 601 N.W.2d 247, 253. Smith's argument fails for at least two reasons.

First, the two statutes in question do not "squarely contradict" one another. N.D.C.C. § 39-08-01.2 is a special penalty for a specific statute. N.D.C.C. § 12.1-32-01

provides the general penalty provisions for felonies, misdemeanors, and infractions without reference to specific crimes. In the case at bar, a special penalty has been provided for a particular offense.

Second, the only significant amendment relating to N.D.C.C. § 12.1-32-01(6), (class B misdemeanors) since the 1987 update of N.D.C.C. § 39-08-01.2 was an increase in the monetary maximum fine from $500.00 to $1000.00 (See S.L. 1997, Ch. 132, § 1), and had nothing to do with the term of jail sentence. Here the only issue concerns the term of jail sentence. The general statutory maximum amount of jail time contained in N.D.C.C. § 12.1-32-01 for a class B misdemeanor has been 30 days since long before the 1987 update of N.D.C.C. § 39-08-01.2. Smith has provided no legislative history whatsoever to suggest that the legislature considered or intended any changes to N.D.C.C. § 39-08-01.2 when it amended N.D.C.C. 12.1-32-01 in 1997.

N.D.C.C. § 39-08-01.2 is clearly as valid today as it was in 1987 when it was enacted.

III. CONCLUSION

The minimum jail sentence provision of N.D.C.C. § 39-08-01.2 is a special minimum penalty which must prevail and be construed as an exception to the general provisions in N.D.C.C. § 12.1-32-01 relating to class B misdemeanors.

The State of North Dakota respectfully requests that the Judgment of the District Court be affirmed. The 90 day special punishment provision of N.D.C.C. § 39-08-01.2 is valid law which complies with legislative intent.

Dated this _____ day of March, 2005.

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